

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 13-19

Amendments to Chapter 2 of Title 2 of the Chickasaw Nation Code

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, it is incumbent upon the Chickasaw Nation to provide all possible and necessary services for its citizens, and

WHEREAS, the Chickasaw Tribal Legislature wishes to further define and delineate criteria for citizenship in the Chickasaw Nation,

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Chapter 2 of Title 2 of the Chickasaw Nation Code, in the following manner and only as indicated:

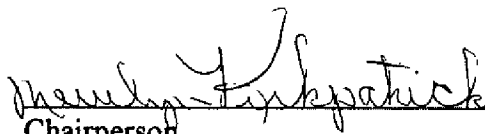
Section 202-4 Definitions

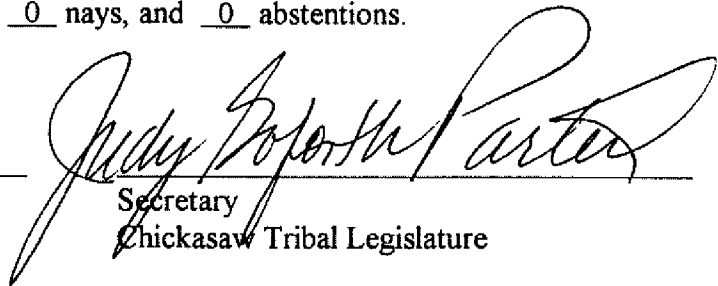
D. "Certificate of Degree of Indian Blood" or referred to as "CDIB" means the official document issued by the Bureau of Indian Affairs (BIA) stating a person's degree of Indian blood. ~~The CDIB is an acceptable document as one of the documents to be used in meeting the necessary evidence requirements in application for citizenship in the Chickasaw Nation.~~ indicating a person's possession of Chickasaw blood, shall serve as proof of citizenship in the Chickasaw Nation.

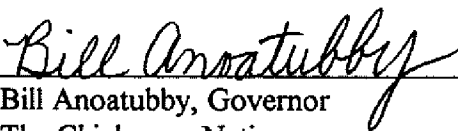
Section 2-207 Documentation of Citizenship

B. Any other person to whom Certificate of Degree of Indian Blood has been issued, denoting Chickasaw Indian Blood, as a lineal descendent of an enrollee on the Chickasaw Rolls by Blood of the Dawes Commission Rolls, ~~may make application for citizenship.~~ shall be a citizen of the Chickasaw Nation, and the act of applying for the CDIB shall be considered an application for citizenship. Cancellation of a CDIB file as provided for under the federal rules and regulations governing the issuance of such certificates shall be grounds for the loss of citizenship in the Chickasaw Nation.

Executed in special session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 5, 1996, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: 9-6-96

CHICKASAW TRIBAL LEGISLATURE

General Resolution Number 13-19

Amendments to Chapter 2 of Title 2 of the Chickasaw Nation Code

Explanation: This resolution amends Chapter 2 of Title 2 of the tribal code of laws dealing with requirements for citizenship. The changes are reflected with strike-through lettering to indicate the current wording of the sections which will be deleted and underscoring to indicate new language to be inserted.

The changes simplify the citizenship process by automatically resulting in recognized citizenship for any person who has obtained a Certificate of Degree of Indian Blood which indicates Chickasaw blood. That is in keeping with Article II, Section 1 of the Constitution, which stipulates that *anyone* who is a lineal descendent of an original enrollee/allottee is a citizen of the Chickasaw Nation. These changes indicate that applying for a CDIB constitutes an application for citizenship, and the receipt of a CDIB showing Chickasaw blood is the same as the granting of citizenship.

Requested By: Governor Bill Anoatubby
The Chickasaw Nation

Presented By: Frank Johnson, Chairman
Human Resources Committee